



BOARD AGENDA REQUEST FORM

2026-585

PROPOSED FOR BOARD MEETING OF: April 21, 2026
DEPARTMENT: Administrative Services
PREPARED BY: Dr. Kevin A. Catlin, County Administrator/Controller
SUBJECT: Approval of Contract Amendment No. 5 with Fishbeck and Adoption of Resolution Authorizing Change Order Approval Authority

SPECIFIC ACTION REQUESTED:

Request for approval to authorize Contract Amendment No. 5 with Fishbeck for environmental soil sampling and testing services related to the 440 North Church Street Parking Structure Project, selection of Option 4, and authorization for the County Administrator/Controller to execute the agreement.

DESCRIPTION OF ACTION (dollar amount, purpose):

Background

The AIA Document B101-2017 is a Standard Form of Agreement Between Owner and Architect, which was approved on January 21, 2025. It defines the architect's responsibilities, scope of services, and compensation for a project. It also outlines terms for cost estimates, project phases, and dispute resolution. This contract is commonly used for large or complex projects.

Kalamazoo County endeavors to construct a parking garage to provide parking for the employees located at the downtown Administration Building and Justice Center, as well as for the public visiting these two county facilities. The parking structure will be constructed on the 440 N Church St., 459 N Rose, and 246 W Kalamazoo Ave. parcels in the City of Kalamazoo.

Fishbeck will provide these services under the contract at a stipulated sum of \$590,800 with reimbursable expenses which include an administrative fee of 10%.

Current Action Request

Fishbeck, the County’s architect/engineer for the 440 North Church Street Parking Structure project, has identified the need for additional environmental soil sampling and testing associated with the 459 N. Rose parcel, which is part of the overall project site.

While prior environmental testing was conducted on other parcels within the assembled site, Waste Management now requires laboratory analysis of soils from this parcel prior to disposal at the designated landfill.

To address this requirement, Fishbeck has proposed Amendment No. 5, which includes multiple options for completing the sampling and testing. Administration recommends **Option 4 (Earthwork Contractor with Expedited Laboratory Turnaround)** in the amount of **\$5,350**, as it provides the most efficient turnaround (approximately 9 business days) and supports maintaining the construction schedule.

Approval of this amendment will ensure compliance with environmental due care requirements and prevent potential project delays.

Total Cost of Changes

Option 4: Earthwork contractor, expedited laboratory turnaround \$5,350 (Estimate 9 business days)

TIME FRAME OF ACTION:

Immediate upon approval.

FUNDING SOURCE & BUDGET CHANGES:

Costs associated with this amendment will be funded within the existing project budget. No additional budget appropriation is required.

Capital Project Funds: #40190208-97100

BUDGET CHANGES:

Account Name	Account Number	Increase / Decrease	Amount
Previously Generated	40190200-69100	Increase	\$5,400.00

Funds			
Capital Projects	40190208-97100	Increase	\$5,400.00

PERSONNEL IF REQUIRED:

N/A

NEW OR RENEWAL:

New

ANY OTHER PERTINENT INFORMATION:

This amendment is necessary to satisfy landfill acceptance requirements and maintain continuity of construction operations.

PROCUREMENT INFORMATION:

Fishbeck was competitively procured and is operating under an existing agreement. This amendment is a continuation of services within the scope of that agreement.

CONTACT PERSON:

Kevin Catlin, Administrator/Controller, 269-384-8111

April 14, 2026

Dr. Kevin Catlin
County Administrator/Controller
Kalamazoo County Government
201 West Kalamazoo Avenue
Kalamazoo, MI 49007

Kalamazoo County 440 North Church Street Parking Structure Request for Contract Amendment 5: 459 N Rose Environmental Soil Sampling and Testing

Fishbeck is currently engaged in the design and construction administration of the proposed new parking structure located on the now combined 440 North Church Street parcel in Kalamazoo, Michigan. The project's geotechnical requirements include removal of undocumented fill material from the site. The depth of undocumented fill observed in the soil borings varies but is generally 3.5-6.0 feet below the existing ground surface. Due to site logistics and environmental due care, it is anticipated that most of the undocumented fill will be required to be removed from the site and disposed at a Type II landfill.

Previous environmental testing was performed on parcels designated at 440 N Church (parcel 06-15-309-010) and 246 W Kalamazoo (06-15-308-008), and test results are available.

At this time, Waste Management, who operates the selected landfill, is now requiring lab analysis on soils originating from the 459 N Rose (parcel 06-15-304-100) portion of the site, which is the previous City-owned Metro Transit parking lot where no previous testing was performed. To accomplish this task, it is necessary to secure a representative soil sample from the site, submit it to an analytical laboratory for various analyses, and provide the results to the construction team and Waste Management.

Scope of Services

There are two options for accessing soil at the site. One is through subcontracted drilling services. Based on our understanding that time is of the essence, this does not appear to be a viable option as lead times for contracted services and even Fishbeck's own equipment is approximately two to three weeks. Nonetheless, cost for our services are provided as an option. Another alternative would be for the contracted earthwork contractor to mobilize equipment in advance of our excursion and be available for a short time to remove asphalt and dig a shallow test pit. It is our understanding that this is likely a feasible option, and our timelines below assume this could be coordinated within three days of authorization.

Once it is determined how the soil sample will be acquired, Fishbeck will mobilize a field geologist to collect the sample and coordinate its delivery to an analytical laboratory. The laboratory will analyze the sample for all the parameters referenced in Waste Management's initial response.

Laboratory results normally require up to 10 business days. As an option, we have presented the cost at normal turnaround times and the cost for an expedited timeline (three business days).

Once results are available, we will provide the analytical report to the project team.

Professional Services Fees

We propose to provide our additional services for a fixed, lump sum fee which includes all expenses for the scope of services. Please select the desired option from the below:

Option 1: Fishbeck drilling equipment, standard laboratory turnaround	\$8,350 (Estimate 21 business days)
Option 2: Fishbeck drilling equipment, expedited laboratory turnaround	\$9,600 (Estimate 14 business days)
Option 3: Earthwork contractor, standard laboratory turnaround	\$4,050 (Estimate 14 business days)
Option 4: Earthwork contractor, expedited laboratory turnaround	\$5,350 (Estimate 9 business days)

Authorization

This work will be performed under the terms and conditions of our existing agreement for Kalamazoo County 440 North Church Street Parking Structure dated December 11, 2024, inclusive of previous Amendments 1-4 dated March 7, 2025, April 30, 2025, September 18, 2025, and February 9, 2026, respectively. If you concur with our scope of services, please provide written authorization on the signature line below.

If you have any questions or require additional information, please contact me at 269.350.3910 or gehmke@fishbeck.com.

Sincerely,



F. Greg Ehmke, PE

Project Manager – Parking and Restoration

By email

Copy: Josh Rozeboom, PE – Fishbeck
David Stegink, PE – Fishbeck

APPROVED FOR:

Kalamazoo County Government

SIGNATURE: _____

NAME: Jennifer A. Strebs

TITLE: Chairperson

DATE: _____

APPROVED AS TO FORM FOR COUNTY OF KALAMAZOO:
CORPORATION COUNSEL

By: Edward F Winkler, Asst. Corporation Counsel

Date Approved: April 17, 2026.

April 14, 2026

Dr. Kevin Catlin
County Administrator/Controller
Kalamazoo County Government
201 West Kalamazoo Avenue
Kalamazoo, MI 49007

**Kalamazoo County 440 North Church Street Parking Structure
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Fishbeck | Page 2

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Sincerely,



F. Greg Ehmke, PE

Project Manager – Parking and Restoration

By email

Copy: Josh Rozeboom, PE – Fishbeck
David Stegink, PE – Fishbeck

APPROVED FOR:

Kalamazoo County Government

SIGNATURE:

NAME:

Jennifer A. Strebs

TITLE:

Chairperson

DATE:

04/21/2026

APPROVED AS TO FORM FOR COUNTY OF KALAMAZOO:
CORPORATION COUNSEL

By: Edward F Winkler, Asst. Corporation Counsel

Date Approved: April 17, 2026.

**AIA**[®]**Document G802[®] – 2017*****Amendment to the Professional Services Agreement*****PROJECT:** *(name and address)*Kalamazoo County
440 North Church Street
Parking Structure**AGREEMENT INFORMATION:**

Date: December 11, 2024

AMENDMENT INFORMATION:

Amendment Number: 005

Date: April 15, 2026

OWNER: *(name and address)*Kalamazoo County Government
201 West Kalamazoo Avenue
Kalamazoo, MI 49007**ARCHITECT:** *(name and address)*Fishbeck
750 Trade Center Way, Suite 200
Kalamazoo, MI 49002

The Owner and Architect amend the Agreement as follows:

Provide additional professional services for Environmental Soil Sampling and Testing for 459 N Rose.
Option 4: Earthwork for test pit provided by others, expedited laboratory turnaround.

The Architect's compensation and schedule shall be adjusted as follows:

Compensation Adjustment:

Five Thousand Three Hundred Fifty Dollars (\$5,350)

Schedule Adjustment:

None

SIGNATURES:

Fishbeck

ARCHITECT *(Firm name)***SIGNATURE**Joshua A. Rozeboom, PE, Vice
President**PRINTED NAME AND TITLE**

April 15, 2026

DATE

Kalamazoo County Government

OWNER *(Firm name)***SIGNATURE****PRINTED NAME AND TITLE****DATE****APPROVED AS TO FORM FOR COUNTY OF
KALAMAZOO:****CORPORATION COUNSEL**

By: Edward F Winkler, Asst. Corporation Counsel

Date Approved: April 17, 2026.

AIA® Document G802® – 2017
Amendment to the Professional Services Agreement
PROJECT: *(name and address)*

Kalamazoo County
440 North Church Street
Parking Structure

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Kalamazoo County Government
201 West Kalamazoo Avenue
Kalamazoo, MI 49007

ARCHITECT: *(name and address)*

Fishbeck
750 Trade Center Way, Suite 200
Kalamazoo, MI 49002

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SIGNATURES:

Fishbeck

ARCHITECT *(Firm name)*

SIGNATURE

Joshua A. Rozeboom, PE, Vice
President

PRINTED NAME AND TITLE

April 15, 2026

DATE

Kalamazoo County Government

OWNER *(Firm name)*

SIGNATURE

Jennifer A. Strebs, Chair

PRINTED NAME AND TITLE

April 21, 2026

DATE

APPROVED AS TO FORM FOR COUNTY OF
KALAMAZOO:

CORPORATION COUNSEL

By: Edward F Winkler, Asst. Corporation Counsel

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